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No. 2.—VOL. I.

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## WHAT IS A PEER?

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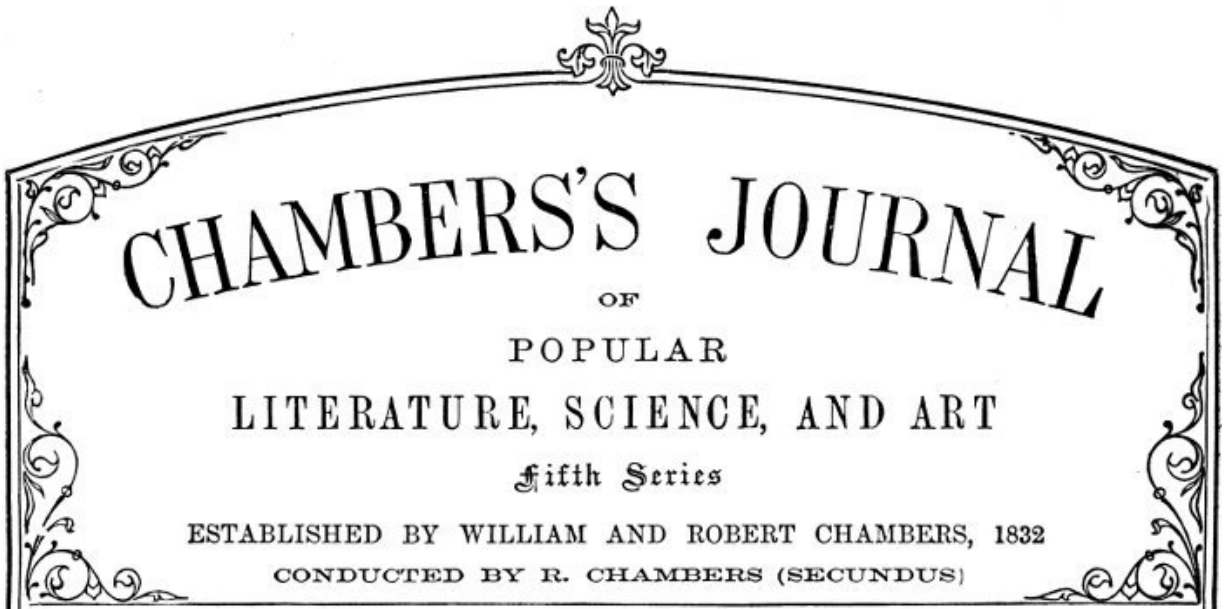
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When once, then, a nobleman—by which is here meant a person ennobled by the Crown—takes his seat in the Upper House of parliament, he becomes a peer of the realm—that is, a lord of parliament; and although the well-known gradations of dukes, marquises, earls, viscounts, and barons exist, yet, so far as parliamentary rights are concerned, all ennobled persons who sit in the House of Lords are the peers or equals of each other. We purposely make use of the word ‘nobleman,’ because the two archbishops and all the bishops who sit there and vote too are not peers; for although they are spiritual lords of parliament, are styled ‘My Lord,’ and—with the exception of the Bishop of Sodor and Man, who has a ‘place but no voice’—may vote, they are not ‘noble,’ and their dignity is not hereditary. For this reason, a peer merely for life, in the absence of an Act of



Parliament conferring privileges of peerage upon him, would not be a 'noble' person. Accordingly, when Baron Parke in 1856 was raised to the peerage for life as Lord Wensleydale, it was decided by the Lords' Committee of Privileges that his lordship could not sit and vote as a peer. Selden, in his *Titles of Honour*, seems to refer to life peerages as quite ordinary distinctions; but whether they were so or not, it is clear that they were practically unknown, or had fallen into disuse between his time (1584-1654) and that of Lord Wensleydale. However, now, by section six of 39 and 40 Vict. c. 59 (the Appellate Jurisdiction Act, 1876), the Crown may appoint by letters-patent two qualified persons to be Lords of Appeal in Ordinary, with a salary of six thousand pounds per annum each. And these persons shall be entitled for life to rank as Barons, 'by such style as Her Majesty shall be pleased to appoint, and shall during the time that they continue in their office as Lords of Appeal in Ordinary, and no longer, be entitled to a writ of summons to attend, and to sit and vote in the House of Lords.' But 'their dignity as lords of parliament shall not descend to their heirs.' Since this enactment, three Lords of Appeal in Ordinary have been created—namely, Lord Blackburn (formerly Mr Justice Blackburn); Lord Gordon, who is dead; and Lord Watson. The object of appointing these noble and learned persons to life peerages is, 'for the purpose of aiding the House of Lords in the hearing and determination of appeals.'

So much for the term 'peer' as having reference to an ennobled person.<sup>[2]</sup> But it is applicable, in fact, to all persons who are not ennobled, for they are the 'peers' of each other. We all know the old maxim that 'every man has a right to be tried by his peers;' in other words, his equals. This is, in fact, one of the most important features in Magna Charta: 'No freeman shall be taken or imprisoned ... otherwise than by the lawful judgment of his peers, or by the law of the land.' This of course applies as much to noblemen as to commoners, although its application to the former is, as we shall directly see, somewhat modified. If John Smith and Thomas Jones were to enter into a conspiracy to dethrone the sovereign, they would be guilty of treason, and would be tried by their peers—namely, a common jury; but if the Duke of A. and Viscount B., peers of parliament, conspired with a like intent, they also would be entitled to be tried by their peers—who, however, would be members of the House of Lords. Also, if Brown, Jones, or Robinson, either singly or in combination, committed burglary, arson, forgery, robbery, embezzlement, they, or he, would be guilty of felony, and would be tried by

their peers. So also would the Duke of A. or the Earl of C., &c., as before. But if a peer of parliament were to obtain money under false pretences, or commit perjury, he would not be entitled to be tried in these cases by his peers, but would be tried by those who are his peers only as members of the community. For although the last-named offences are undoubtedly serious, the law regards them as less so than the others, and styles them misdemeanours.<sup>[3]</sup> In all trials for misdemeanours, then, a peer of parliament, when arraigned upon a charge coming within this category, is only regarded as a peer of persons in the lower grades of society. And although members of the House of Lords enjoy immunity from arrest in civil cases—as do also members of the House and barristers too when going to and from a court—yet they are just as liable to arrest in any criminal case as all other subjects are, so that here also they are only the peers of their fellow-men whether noble or simple. As regards the proceedings in courts of law, a peer is liable to be subpœnaed, and must, like a commoner, obey the subpœna. And although, when acting on a jury<sup>[4]</sup> for the purpose of deciding the guilt or innocence of a peer arraigned for treason or felony, he is entitled—unlike a common juror—to give his judgment on his honour, yet if he be called as a witness in a court of law, he must, like any other man, be sworn on oath.

A peer when indicted, is bound, like any commoner, to plead to the indictment; and if convicted, is liable to be punished precisely like any other man (4 and 5 Vict. c. 22).

From what has been said, it will be seen that the civil rights of peers are pretty much the same as those of all other subjects. What privileges the most exalted peer possesses are rather of an ornamental than a substantial character. And as every man, however humble may be his origin, has a chance of becoming a peer, the complaints sometimes heard about peers being a privileged class, &c., have, apart from political considerations, but little foundation. Their so-called privileges may thus be enumerated: They are exempt from arrest for debt; they have a hereditary place in parliament, and, unlike members of the House of Commons, they may vote by proxy, and may record their ‘protest’ against proceedings in their own House in its journals; as permanent counsellors of the sovereign, they have an individual right of access to the sovereign’s presence and audience while there; they may wear coronets appropriate to their peerage rank, and scarlet cloth robes

marked in accordance with their degree; they are entitled to be called ‘Your Grace’ or ‘Most Honourable,’ ‘Your Lordship’ or ‘Right Honourable,’ according to circumstances. And when addressed by the sovereign, they are styled his or her ‘cousin,’ with a variety of ceremonious and endearing epithets prefixed to that term, more or less so according to their rank. They may also sit in courts of law with their hats on, if they like, during the proceedings.<sup>[5]</sup> And this will explain why a peer is always accommodated with a seat on the bench in court, when plain Mr Smith is either incapable of getting in at all, or if in, is relegated to the gallery or other portion of the court set apart for the public.

A man may be a peer by prescriptive right, by creation, or by hereditary right; and peers are created in two ways, either by the ancient mode of writ of summons, or by letters-patent. At the present day, persons are almost invariably ennobled by the latter process. For if a person summoned by the sovereign to attend parliament as a peer, should die before he can take his seat, the peerage so created would fail, and would, therefore, not descend to his heir. On the other hand, a peerage created by letters-patent descends to the heir of the person so ennobled under any circumstances. The writ of summons, however, is not obsolete, and is used when, for some reason, it is deemed desirable to call the eldest son of a peer to the Upper House of parliament during his father’s lifetime. In this case, whether the person summoned does or does not take his seat, is obviously immaterial, so far as the descent of the father’s peerage is concerned, because, if the eldest son has a son, the grandfather’s title will descend to him, if he outlives his grandfather. When the eldest son of a peer is summoned to the Upper House in his father’s lifetime, he sits by the baronial title of the peerage. Thus, the Earl of Albemarle, who is also Viscount Bury and Baron Ashford, being, in 1876, advanced in years, his eldest son, Viscount Bury, was summoned to the House of Lords, not, however, as such, but as Baron or Lord Ashford.

In the creation of a peerage, the limitations—that is to say, the arrangements as to how it shall descend—may be analogous to the limitations of real estate; for a title is just as much a hereditament—which simply means something that can be inherited—as an acre of land, except that the latter is termed in law a corporeal or tangible hereditament, and the former an incorporeal hereditament. Accordingly, a title may be *in fee*, in which case it will descend to the heirs-general of the first holder; *in tail*, male or female,

when it descends to the eldest son, &c., or his brothers and their eldest sons, &c.; or it may be, as we have seen, *for life*, when, at the death of the holder, it expires.

Thus, not only may a man be created a peer, but a woman may also be ennobled; and a woman may also occupy the status of a peeress by marriage, whereas a man never can by marriage occupy even the status of a peer. There are several instances of ladies holding peerages, as may be seen by referring to Sir Bernard Burke's magnificent and interesting work; but we have no dukedom, marquissate, or viscounty, in what may be called the female peerage. Peeresses by descent or by creation are the only persons who are legally entitled to be called 'Ladies in their own right,' and their titles descend to their sons and their daughters according to circumstances. Real peeresses, and also those by marriage, have most of the privileges of peers; but of course they cannot sit in parliament and so forth; and if a peeress by marriage, being a widow, remarries with a commoner, all her privileges cease, although she may retain her title conferred by the first marriage. A peeress in her own right, however, who marries a commoner is still a peeress, and does not forfeit any of her privileges as such; but, as before indicated, she cannot ennoble her husband, although she may her son or her daughter—of course, after her own decease—by transmitting her title to him or her.

Daughters of dukes, marquises, and earls, are usually designated by the title of 'Lady,' their Christian names being used before their patronymic; and we often hear that Lady Matilda So-and-so is a lady in her own right. Such, however, is not a correct statement; for the title in such case is held by no absolute right, but only by a custom, itself founded on what is called 'the courtesy of the realm'—*curialitas regni*.

And this brings us to an examination of the opening statement in our paper—namely, that many people appear to think that every man styled Lord So-and-so is necessarily a peer.

Now we have shown what a peer *is*; and it may be safely asserted, that every person in this kingdom, be he whom he may, if not entitled to the description we have given of a peer, his status, and his privileges, is, to all intents and purposes, a commoner, just as much as though he were a costermonger. But we have marquises, earls, viscounts, and lords, in the

House of Commons, and how is it that they sit there bearing their titles? The answer is, that although they bear titles, yet such are not titles of nobility, but are simply designations allowed them by reason of their father's rank; the permission being accorded, as in the case of daughters of dukes, marquises, and earls, by the 'courtesy of the realm.'

Many dukes<sup>[6]</sup> have also a marquissate, an earldom, a viscountcy, and a barony attached to their dukedom; many marquises are earls, viscounts, and barons; in the same way, an earl is generally a viscount and a baron; while a viscount may have a barony attached to his peerage. By the courtesy of England, the eldest son of all the peers above mentioned, except the last, is allowed to assume his father's second title; but in reality such eldest son is in every respect nothing but a commoner, so far as his legal rights are concerned. Thus, the eldest son of the Duke of Bedford is styled Marquis of Tavistock, his father's second title; but as M.P. for Bedfordshire, he was not elected to sit by that title, but as the Honourable So-and-so Russell, or rather, perhaps, as So-and-So Russell, Esquire, commonly called Marquis of Tavistock. And a similar rule prevails as to all other similar cases, including instances where any son, not the eldest of a duke or marquis, sits in the Lower House, which persons are all styled 'Lord,' with their Christian and family surnames affixed. Thus, 'Lord' Randolph Churchill, who is in law, Randolph Churchill, Esquire, commonly called Lord Randolph Churchill, sits as member of parliament for Woodstock. But neither he nor any other person bearing a mere courtesy title is really a 'nobleman,' still less is he a peer of parliament, but in legal contemplation a peer only of his own peers—that is to say, of every commoner of the realm, and has no inherent rights or privileges which they do not possess.

The eldest son of the sovereign is born a peer as Duke of Cornwall, and as such, at twenty-one, is entitled to sit and vote in the House of Lords. The other sons of the sovereign are not born peers, although they are Princes, but they may be created peers; and to enable his or her sons to sit in parliament, the sovereign usually confers peerages on his or her younger sons. Hence, Prince Alfred became Duke of Edinburgh; Prince Arthur, Duke of Connaught; and Prince Leopold, Duke of Albany. As Princes, they could not sit in parliament; but having been created peers, they can sit and vote and exercise all the other rights of peers.

It does not follow that a peer of a certain grade in the Scottish or Irish peerage, although entitled a peer of parliament, necessarily sits and votes in the Upper House by the title which he ordinarily bears. Thus, the Duke of Argyll as a lord of parliament is not really a duke, but only a baron; and in the division lists of the House of Lords he is always mentioned among the barons as Lord Sundridge. Again, the Duke of Leinster, who, as regards the Irish peerage, is premier duke, marquis, and earl, is nevertheless only Viscount Leinster so far as the House of Lords is concerned, and by such title he sits and votes. As a matter of politeness, however, both of the two distinguished persons just mentioned are severally referred to by their more exalted titles when spoken of in the House, or when their speeches are reported. Again, locality does not necessarily indicate the status of a nobleman. Thus, Lord Rendlesham, an Irish peer, takes his title from a Suffolk village; and Lord Emly—formerly the Right Honourable W. Monsell—who takes his title from a place in Ireland, is a peer of the United Kingdom. So also of the Earls of Erroll and Enniskillen, who have respectively Scotch and Irish titles, but are yet English peers—though the English peerage is technically held in each case under a different title from that by which these peers are generally known.

Lastly, although the grades of the peerage are dukes, marquises, earls, viscounts, and barons, yet of these, earl is the oldest title so far as regards the British peerage. The first earldom extant, though not the first created, is that of Arundel, created by King Stephen in 1139. Next come barons, of whom, however, we read long before the Conquest. The first barony in the peerage is that of Kingsale (1181), already alluded to. Dukes follow the barons, the first of them having been the Duke of Cornwall, son of Edward III., created in 1377; then marquises, the first of whom was De Vere, Marquis of Dublin, in the reign of Richard II. (1377-1399). Not until the reign of Henry VI. (1422-1461) do we hear of viscounts, and the title of the first viscounty—namely, that of Viscount Beaumont, created in 1440—no longer exists.

We have thus endeavoured to answer the question, ‘What is a Peer?’ and we trust that the foregoing statements have assisted any reader who may have previously entertained confused notions concerning the subject dealt with.

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## BY MEAD AND STREAM.

### CHAPTER III.—WHAT IS TO BE.

THE master of Willowmere, Dick Crawshay, was recognised throughout the county as a perfect specimen of the good old style of yeoman farmer. He was proud of the distinction, and proud of upholding all the traditions of his rapidly diminishing class. It was not so much owing to eccentricity or vanity, as to simple faith in what he believed to be due to his position, that his dress invariably combined the characteristics of the past and the present. His top-boots and breeches were like those worn by his father; his long waistcoat was after the pattern of his grandfather's; whilst his short coat and billycock hat belonged in some degree to his own day.

Rough and ready, outspoken in friendship or enmity, quick-tempered, but never bearing malice, his whole creed was that a man should mean what he says and say what he means. He was huge in person, height and breadth, and many people had good reason to know that he was equally huge in kindness of heart.

Legends of his feats of strength in wrestling, boxing, horse-training and riding, were often recounted by the old men of the district as worthy examples of skill and prowess for their grandchildren to emulate, or to amuse their cronies in the taproom of the *Cherry Tree*.

'Ah, when I thinks on that day of the Hunt Cup Steeplechase, thirty year ago!' old Jerry Mogridge used to mumble over his jug of foaming ale. 'The young Maister—he were the young Maister Dick in them days—entered his 'oss against some o' the best blood out o' Yorkshire, not to mention what our own county turned out, and we had some rare uns. We don't have no such riding nor no such 'osses, I do believe, nowadays.'

Then Jerry would pause to reflect over departed glories, press down the ashes of his long clay-pipe carefully with his third finger and draw a long breath.

'You was there, Jerry,' his neighbour observed.



‘There I was, for sure. And there was Maister Dick with his horse Goggles that he was ready to back agin anything on four legs. It were a sight, I tell you. Nine on ’em started, and Goggles took the lead right away’—here old Jerry, with the stem of his pipe serving as a pencil, began to trace on the table the imaginary lines of the course—‘he cleared the water-jump pretty, and maybe half a dozen came after. On the flat they was nigh equal, but—Lor’ bless you—Goggles was only laughin’ at ’em. *He* knowed as he could get away as soon as the Maister pleased to give him head. They was a’most abreast when they came near the ugly fence down by Farmer Tubbs’s land. Then Goggles got his way. He were as brave as a lion—or a unicorn, for the matter o’ that—and he took the fence at the nighest but the worst part. We see him rise in the air as it might be, and dip again. Then—well, then, if he didn’t roll right over, and Maister Dick turned a somersault into the ditch.’

There Jerry would stop again in order that his listeners might realise the full horror of the position, emitting half-a-dozen deliberate puffs of smoke from his mouth, and proceed with the pride of a bearer of good news.

‘But the Maister was on his feet again afore you could count your fingers. So was Goggles. The Maister give him a pat on the neck and, says he: “If you can do it Goggles, I’m game.” With that he jumps into the saddle and went tearin’ after them as was proud to think that he was out o’ the chase, and he caught ’em up, and when they were about a quarter of a mile from home, Goggles put on an extra spurt and came in first by a neck. But that weren’t the end on it, for while everybody was a-crowdin’ round about him, Dr Mauldon says:

““What’s the matter with your right arm, Dick, that it’s hangin’ so limp-like at your side?”

““Dunno what it may be,” says Dick; “but it’s been no use to me since we tumbled over the fence.”

““Broken, sure-ly,” says the doctor angry-like, “and you went on riding the race—you’re a fool.”

““But I won it,” says Dick, “and I’m main proud on it, for there’s summat more nor the cup hanging on to Goggles this blessed day.”

‘Six months after that steeplechase, he married Hesba Loughton,’ the old man concluded with subdued but suggestive emphasis.

From that day the homestead of Willowmere had been a merry one, notwithstanding the dark shadows which had from time to time crossed it. Three children had been born, but one by one had passed away, leaving a blank in the lives of mother and father which nothing could fill. But it made them the more ready to welcome the child of Mrs Crawshay's sister when misfortune fell upon her. Madge had been at once taken into their hearts as their own child, and had grown up with as much love and respect for them as she could have given to her parents proper.

On their part Mr and Mrs Crawshay were devoted to the girl, and allowed her from the first to be mistress of the whole house. She wanted books, they were at once obtained: she wanted a piano, and her wish was gratified. In her education, they spared neither care nor money, but Crawshay would never consent to her being banished to a boarding-school.

So she had grown up quite a home-bird, as her uncle used to say; being endowed with mental capacity, however, she had made the most of every opportunity for reading and learning. And through it all she took her share in the household work, and her guardians had reason to be proud of her.

Until the present occasion her uncle had never hinted that he expected to be consulted in her choice of a husband. Even now he only warned her that he would not approve of any of the Ringsford family. But the warning came late, and surprised her the more as no distinct reason was advanced for it. Although there had been no formal announcement that she and Philip had come to the conclusion that they had been born for each other and were dutifully ready to accept their fate, he had for some time been regarded as her chosen suitor.

Their wooing had been free from petty concealments, and there had not been much formal discussion on the subject between themselves. Unconsciously they realised the fact that man or woman can no more be in love and not know it than have the toothache and not feel it. They may coquette with fancy but not with love. They may in modesty try to hide it, but they know it is there. So there had been no 'set scene' of asking and granting. A flash of the eyes—a touch of the hand—a quick, joyful little cry—a kiss and all was known. They loved: they knew it; and were happy in their hope of the future that lay before them.

This sudden change of her uncle's mind in regard to Philip—for of course he could refer only to him when he spoke of the Ringsford people—presented a problem with which she had never expected to be tried. Suppose her guardians should forbid her to marry Philip, would she be able to obey them? Ought she to obey them?

There was no present answer for the questions, and yet they could not be dismissed from the mind. She was glad to find that Philip was innocent of any conscious cause of offence, and pleased that he should go at once to seek an explanation.

The stables, the barn, with their red-tile roofs washed with varying shades of green, the cow-house and piggeries with a white row of labourers' cottages, formed a cosy group of buildings by the side of the green lane which led from Willowmere to the main road between the village of Kingshope and the little town of Dunthorpe.

Crawshay was standing in the gateway with a tall gentleman whose features were almost entirely concealed by thick black beard, whiskers, and moustache. By way of contrast perhaps, he wore a white hat. His dark-blue frock-coat was buttoned tightly; in his claret-coloured scarf was a horseshoe pin studded with diamonds; his boots were covered by yellow gaiters. A smart man, evidently of some importance. He was discussing with Crawshay the merits of a horse which was being trotted up and down the lane for their inspection.

'You won't find anywhere a better bit of horse-flesh for your purpose,' Crawshay was saying whilst he held the stem of an acorn-cup in the side of his mouth like a pipe.

'When you say that, Crawshay, I am satisfied, and he would be a fool who was not. We'll consider it a bargain.'

'Give her another turn, Jerry.—There's action for you!' he added with enthusiasm as the animal was trotted up and down the lane again. 'There's form!—proper, ain't it? Seems to me that I can't part with her.'

'You cannot help it now: we have struck the bargain,' rejoined the purchaser, grinning. He was aware that the farmer's exclamation was in no

degree akin to any of the horse-dealer's tricks to enhance the animal's value.

'Well, you are a neighbour, Mr Wrentham, and that is always a sort of comfort.'

'I'll be good to her, never fear. Now, I'm off.—Hullo, Hadleigh, how are you? I am just bolting to catch my train. Good-bye.'

Mr Wrentham walked smartly into the stable-yard, got into his gig and drove off, waving his hand to his two friends as he passed through the gateway.

Philip, who just then had entered the gateway, was glad to see him go: first, because he did not like the man, although frequently forced into contact with him; and, second, because he wanted to be alone with Crawshay.

The latter had not displayed any coldness and had given him the customary greeting. He was patting the mare he had just sold and passing his hand affectionately over her flanks whilst he repeated various expressions of admiration, the burden of them all being:

'He's got a rare bargain, but he's a smart fellow and he'll be good to you, old girl.'

'I have been hunting for you everywhere,' said Philip with his frank smile and without any fear of the explanation which was about to take place. 'Are you going up to the house just now?'

'No; I was meaning to go down to see how the lads are getting on with the wheat. Am I wanted at the house?'

'Not particularly; but I want to have a chat with you.'

'Come along then. There'll be time enough for chatting as we cross the Merefield. What is it?'

'That is exactly what I have got to ask you. What have I been doing that you have been upsetting Madge by telling her that she is to have nothing more to do with me?'

They were in the field—an extensive plain which had been once a morass. Drainage and cultivation had converted it into valuable meadow-land. The hedges which bounded it were studded with willows, and three trees of the

same kind formed a group in the centre. These trees and the nature of the ground had doubtless suggested the name of the farm. In wet seasons the Merefield justified its title by presenting a sheet of water sometimes more than a foot deep, in spite of drains and embankment to keep the river out.

‘That’s right, Philip, lad—straight from the shoulder; and I’ll make answer likewise. I never told Madge that she was to have nought more ado with you.’

‘I was sure of it,’ exclaimed the lover in cheerful confidence; ‘and now I may call you Uncle Dick again. But you have given her a scare—you know how seriously she takes things, and you will have to tell her yourself that it was only your fun.’

Crawshay’s face had at first assumed an expression of internal chuckling at some joke which amused and yet did not altogether please him. Now, however, his brows contracted slightly, and he spoke gravely.

‘Ah, but it weren’t all fun neither.’

‘Then what in the name of goodness was it? I know that you had some disagreement with my guv’nor the other day; but you are not going to make us miserable on that score.’

‘I don’t want to put you out on any score: but your father may.’

‘My father!—nonsense. What could make you fancy that he would interfere with me in this matter?’

Crawshay halted, close by the three willows, clasped his hands behind him and looked straight at his young friend.

‘I am not going to tell you ought about what passed atween your father and me,’ he said resolutely. ‘You can ask him if you like; but if you’ll take a word of counsel from me, you won’t do it. You can understand this much, however; I am not going to stand in your way with Madge; but I am not going to let you stand in Madge’s way, neither.’

‘I do not see how that can be,’ answered Philip, perplexed by Crawshay’s words and manner, ‘since we two have only one way before us.’

‘That is to say you think so now’——

‘And shall always.’

‘Ay, ay; we understand all that,’ said the elder, nodding with the regretful scepticism of experience; ‘but there never was any harm done by making sure of every foothold when passing through a bog. See if we can’t clear things up a bit. When are you going away on this grand journey that’s to make your fortune?’

‘In about a fortnight.’

‘And you’ll be away how long?’

‘Perhaps a year.’

‘Maybe two—maybe three.’

‘O no; there is no probability of that.’

‘There’s no saying. But what I want to be at now—and mind you, I’m not doubting you, and I’m not like to doubt Madge—what I want to be at is that while you are away in foreign parts you may change your mind—hold hard a minute—Madge may change hers. Heaps of things may happen. So that all I meant by what I said to her the other night is that you should both be welcome to change if you think it best for yourselves. So there are to be no bindings and pledges atween you. If you come back and are of the same mind and she is content, I will not be against you. Is it a bargain? It is a fair one, though you mayn’t think it now; but you are not the lad I take you for if you don’t own it to be common-sense and agree to it.’

‘I cannot see anything in it to disturb us,’ said Philip, ‘since you leave us free to please ourselves.’

‘Ay, but you understand that when I say *free*, I mean it. If you are going back to the house, you can tell Madge everything I’ve said.’

‘We could not desire any other arrangement. I am content, and she will be. Whatever your tiff with my father may be about, it will not bother us.’

‘Ah, you had better wait till you hear what he has to say,’ observed the yeoman, with a droll shadow of a grin, as if he again recalled that joke which amused but did not please him.

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## A ROMANCE OF ALMANACS.

IF any book deserves the name of 'irrepressible,' it is the almanac. Notwithstanding its great antiquity, it is still important; and though we grow old, it renews its youth every year, and greets us regularly with a kind of good-natured, 'Here I am again!' The oldest almanac in existence is an Egyptian one, and may be seen in the British Museum. Buried nearly three thousand years ago with some human contemporary of Rameses the Great, it has been brought to light again, and copied in fac-simile. Twenty-five columns are wholly or partially preserved. The fortunate days are marked in black ink, and the unfortunate in red—a curious instance of a superstition which European nations have reversed. It contains observations about religious ceremonies, cautions against unlucky times, and predictions as to the fate of children born on certain days. But apart from this immense antiquity, we find almanacs early occupying an important part in the Christian economies. Indeed, to churchmen and to church-goers, they soon became indispensable; the more so, as fast days, feast days, and saints' days increased in number.

Written almanacs of later date have not been traced farther back than the second century; but from the eighth to the fifteenth there are many beautiful specimens in existence. For every Missal, Psalter, Breviary, &c., had a calendar in the beginning, pointing out to the faithful the Church's fasts and feasts; and King Athelstan's Psalter, 703 A.D., also exhibits lunar tables.

In Saxon almanacs, the signs of the zodiac do not appear; each month is typified by some domestic or agricultural symbol—thus, ploughing represents February; apple-gathering, September; the Christmas feast, December. The illustrations of French almanacs of the same period distinctly mark the nationality; while those of Flemish and Italian origin are remarkable for their delicate fancies and marvellous beauty of colouring. The French had also rhymes, preserving, in short, satirical remarks, national peculiarities and prejudices.

After the tenth century, the almanacs were the great repositories of astrology, medicine, proverbial wisdom, and popular superstitions. All of

them had lists of the lucky and unlucky days; but as yet there were no predictions. Learned churchmen stealthily cultivated astrology and astronomy; but the vulgar were left in ignorance as to whether doleful Saturn was diffusing his baleful influence, or fiery Mars bringing war and bloodshed. Each month in the year had at least two unfortunate days, except April, which had only one; but that was the terrible Walpurgis Night, specially given up to demons and witches. However, as the English list differed from the French, and the French from the Italian, a man by having the whole three could cheat fate and defy misfortune. Friday has always been a black day; and there are even yet people who have a mysterious dislike to it, who never heard of the thirteen reasons duly set forth in these old almanacs, such as the killing of Abel, the slaughter of the Innocents, the beheading of John the Baptist, &c.

No part of these old almanacs is more positive and more unpleasant than the medical department. Bleeding and herb-teas are specifics for every malady. Each month had its particular herb, and nearly every month its libation of human blood. September had two—the ‘liver vein’ is said to be then ‘full of venom;’ and bleeding at the beginning and end of the month, ‘most needful and comforting.’

From the homely character of the information in these early almanacs, it is evident that they were intended for general use, and it is probable every burgher possessed one; for we are apt to underrate the extent of manuscript literature, and to overrate its price. That the number of copyists was very great, is evident from the complaints following the invention of printing, which, it was said, ‘deprived hundreds of bread.’ Of these manuscript almanacs, three famous ones remain—that in Lambeth Palace, bearing the date of 1460; that of John Somers, written in Oxford, five hundred years ago; and the Oxford almanac of 1386. The last was printed as a curiosity at the beginning of the present century; and it may be noted, that in early days, Oxford was the centre of almanac manufacture, astronomy and surgery being mixed with religion and history.

The first printed almanac was published in Buda-Pesth in 1475. Twenty years after it, the first printed English almanac appeared. It contained much miscellaneous information; but the compiler was consistently and gloriously mysterious. Others rapidly followed. Twenty-five years ago, an almanac of that period (1495) was found in an old chest in Edinburgh, and



placed in the Bodleian Library, where it may now be seen. It has on its title-page, 'Flete Strete, by Wynkin de Worde;' and it consists of fifteen leaves, each leaf two inches square.

A French almanac which began to appear about this time, is still published. It is called *Le Grand Compost et Calendrier des Bergers*, and it claims to be four hundred years old. *A Prognostication of Righte Goode Effecte*, was set forth by Leonard Digges in London, 1553. It contains some queer astronomical and astrological observations. In it we are told that the moon is fifteen thousand seven hundred and fifty miles from the earth, and Mercury only twelve thousand eight hundred and twelve; that Saturn's conjunction with the moon caused unlucky days; but the moon with Jupiter, fortunate ones. Venus gave luck to woo and marry, and make pleasant pastimes, and, strangely enough, 'blood-letting' is included among the latter. Mercury was good to buy and sell under, and to send children to school.

Dr Dee's almanac followed in 1571. This is a regular almanac, having a list of days down one side of the page, and the other left blank for memoranda. In this almanac we find among the rhymes that useful one beginning, 'Thirty days hath September,' &c. Dr Dee's almanac did not make any prophecies, except against the Turk and the Pope, the downfall of both of whom was constantly foretold. Before the end of Elizabeth's reign, almanacs had become a popular necessity. Many of them had shrewd touches at the times—at the pride of the nobles, at the tricks of the lawyers; and Pond in 1611 includes all the three 'learned professions' in his evil list.

The importance of the almanac from a commercial point of view originally occurred to James I. He granted a monopoly of these publications to the Stationers' Company and the two universities, and so filled his exchequer. We have a volume before us containing sixteen almanacs for the year 1615. One of the chief things to be noted in this collection is the list of historical events which at that date were thought worth remembering. They are—the invention of printing, the capture of Boulogne, the sweating sickness, the great plague, the great frost of 1564, a blazing star in 1572, a deep snow in 1581, the camp at Tilbury in 1588, the taking of Cadiz in 1596. Bretnor, a famous almanac-maker of James's reign, has the good and evil days in tables, with warnings in such droll phrases, that they are worth a short quotation. Thus the month of January shows that

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|--------------------------------|----------------------------------------|
| 4, 8. All that you can.        | 1, 2, 7. Lost labour.                  |
| 9. What you desire.            | 3, 5, 6. On the losing side.           |
| 13, 14. Both heart and hand.   | 10, 11, 12. All for your harm.         |
| 17, 18. A fast friend.         |                                        |
| 21, 22, 23. Well ventured.     | 15, 16. Nothing to your purpose.       |
| 28, 29. Through the briers.    | 19, 20. But hard hap.                  |
| 30, 31. Past hope of recovery. | 24, 25, 26, 27. Unfit for thy purpose. |

Early in the reign of Charles I., the first commercial almanac was published. It may be called the first *Poor Richard*. It contained tables of interest, necessary tables of expenses, pithy proverbs inculcating frugality and industry, and the usual melange of astrology and medicine. About the same time the religious almanac appeared. A rigid Puritan called Ranger was its editor. It is a gloomy production.

In Cromwell's time, the almanacs are of a religious character; all receipts and directions end 'sermonwise.' The famous William Lilly was at this time the prince of astrologists and almanac-makers. At first, he prophesied for the king. But he was shrewd enough to see, without casting any horoscope, whose star was in the ascendant; and very soon all the stars in their courses fought against Charles.

As a matter of statecraft, James did a wise thing when he legalised astrology. Almanacs have always had a great influence with the mass; and it was a subtle device to give the liberty of prophesying after that legitimate fashion which should gloss with superstition 'the divine right of kings.' But the universities finally grew ashamed of their connection with the almanac, and sold their rights to the Stationers' Company. This Company was always on the side of the ruling power. It had prophesied for Charles, and it had prophesied for Cromwell. It sang *Te Deum* for the Restoration, as it had done for the Protectorate. It dated its little books from the year 'of our deliverance by King William from popery and arbitrary government;' and it invoked the blessing of the planets on the last of the Stuarts.

When Lilly died, the Company employed his pupil Gadbury; and when Gadbury died, his relative, Job Gadbury, prophesied through another generation of credulous dupes. Then came the infamous John Partridge,

who was pilloried by Swift's wicked wit in 1709. But at that time he had been prophesying for the Stationers' Company forty years. After Swift's attack, he refused to predict, and the Company, who did not like to be laughed out of the profits of his reputation, published an almanac which had Partridge's name to it, but which Partridge never wrote. This almanac was still dragging on an existence in 1828, with the sins of a century and a half on its head. Francis Moore began his career of imposture in 1698, and *Poor Robin*, the ribald hoary jester of the Company, about the same time. A dozen years after the Restoration, it also published a *Yea and Nay Almanac for the People called by the men of the world, Quakers*. A more atrocious libel on their faith and morals it is impossible to imagine.

In 1775, an enterprising bookseller called Carnan became possessed with the idea that this corporation had no legal right to its monopoly in almanacs, and he published one of his own. The Company sent him to prison as regularly as he sold his annual commodities; but Carnan was not a man to be put down. It is said he always kept a clean shirt in his pocket, ready for a decent appearance before the magistrates; and at length the Common Pleas decided in his favour. Then the Stationers' Company appealed to Lord North; and as that minister wanted prophecies to make the war against the American colonies popular, he brought in a bill to the House of Commons re-investing the Company with the monopoly which had been declared illegal. The two universities also—which had an annuity from the Company—used all their influence against the solitary bookseller. But he had a good cause, and he had Erskine to plead it; and he triumphed.

When the French Revolution came, Moore was more terrific in his prophecies and more awful in his hieroglyphics than ever. The people wondered and trembled, and the sale of this almanac reached a point without parallel in the annals of imposture. But the continent of Europe had a rival even to Moore in the famous almanac of Liége. A tradition ascribes it first to a canon who lived in 1590. Its early numbers are published 'with the permission of the superior powers;' the later ones are content with 'the favour of His Highness.' It is full of political predictions. In 1700, a French almanac called the *Almanach Royal* started a new idea, the one which has since made the *Almanach de Gotha* so famous—it gave the names and birthdays of all the princes and princesses in Europe, lists of clergy, bar, army, and diplomatic corps. The latter almanac has been brought to a high

pitch of perfection, and contains a vast amount of valuable and well-assorted information.

Shortly after these French almanacs, there appeared a famous American one—the *Poor Richard* of Dr Franklin. He did not care to put his name upon the title-page, and therefore it was duly credited to Richard Saunders. It was published from 1733 to 1757, and was a great financial success. It is now a rare book; a correspondent in *Notes and Queries* mentions one sold in Philadelphia for fifty-two dollars.

In 1828, the Society for the Diffusion of Useful Knowledge took the almanac in hand. Then the Stationers' Company, perceiving that the day of ignorance was dying and that decency would pay, issued a really excellent one, called *The Englishman*. Yet superstition dies hard. Only sixty years ago, the popular feeling was tested by leaving out of Moore's almanac that mysterious column showing the influence of the moon on the different parts of the body. But the editors, being prudent men, only issued one hundred thousand copies of this emendation, and the result showed their wisdom. The omission was at once detected and resented; nearly the whole issue was returned to the publishers, and they were compelled to reprint the column, in order to retain their popularity.

On the Repeal of the Stamp Act in 1834, almanacs started on their course unfettered. One of the few that now deal in prognostications of a political kind is Zadkiel's. The comic almanac is a purely modern feature of the little book—the pleasant wrinkle added by the nineteenth century. Cruikshank, and those witty clever souls who were the original staff of *Punch*, began the laugh, which America in several publications of this kind has re-echoed. And it is hard to say where this pushing, progressive, irresistible little book will not go. The divine, the lawyer, the physician, the merchant, have all their special almanacs. There are nautical, military, and literary almanacs. We cannot buy a box of note-paper but we find one in it; our perfumer sends it to us scented; our newspaper gives us one illustrated. With such a cosmopolitan temper, and such a universal adaptability, it may yet become the year-book of all nations, and the annual balance-sheet of the world's progress.

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# **TWO DAYS IN A LIFETIME.**

## **A STORY IN EIGHT CHAPTERS.**

### **CHAPTER II.**

SIR FREDERICK came forward with his set artificial smile, and shook hands with Mrs Bowood with much apparent cordiality. He was a slightly built man, rather under than over the ordinary height. As Mrs Bowood had remarked, he did not look nearly so old as his years; but he had taken great care of himself all his life, and he was now reaping his reward. He was as upright as a dart, and there was something of military precision in his carriage and bearing, although he had never been in the army. His once coal-black hair was now streaked with gray, but judiciously so, as though he were making a graceful concession to the remorseless advance of time. How much of its tint was due to nature and how much to art was a secret best known to himself and his valet. His face was close shaven, except for a small imperial, which was jet black. He had clear-cut aquiline features, and when younger, would doubtless have been considered by most people as a very handsome man. But his eyes were small, and their general expression was one of cold suspicion; they lent a touch of meanness to his face, which it would not otherwise have possessed. Sir Frederick was carefully dressed in the height of the prevalent fashion, but with the more prominent 'points' artistically toned down to harmonise with the obligations of advancing years.

'Good-morning, Mrs Bowood,' he said. 'Is the Captain at home?'

'Good-morning, Sir Frederick. You are quite a stranger.'—He had not been to Rosemount for five days.—'Charles is somewhere about the grounds. I will send a servant to look for him.'

'No, no, my dear Mrs Bowood; nothing of the kind, I beg. I will go in search of him myself presently. I have driven over to see him about that bay mare which I am told he wants to get rid of.'

Mrs Bowood smiled to herself. The excuse was too transparent. 'Charles is one of those men who are never happy unless they have something to sell,' she said.

'Whereas your sex, if I may venture to say so'——

'Are never happy unless there is something that we want to buy. How thoroughly you understand us, Sir Frederick!'

'Consider for how many years I have made you my study.'

'What a pity you did not make better use of your time!'

'Where could I have found another study half so charming?'

'You would graduate with honours, I do not doubt.'

'If you were one of the examining Dons, that might be possible.'—There was a brief pause, then the Baronet said: 'I trust that Lady Dimsdale is quite well?'

'Quite well, I believe. She, too, is somewhere about the grounds. This lovely morning seems to have tempted every one out of doors.—You will stay luncheon of course, Sir Frederick?'

'You are too good. A rusk and a glass of claret are all that I take in the middle of the day.'

It was one of the Baronet's little weaknesses to like to be regarded as a semi-invalid, especially by the ladies.

'Captain Bowood must add his entreaties to mine, and persuade you to stay.—By-the-bye, I had almost forgotten to ask after your nephew. Have you heard from him lately?'

Sir Frederick became animated in a moment. 'I had a letter from the dear boy by last mail. He wrote in excellent spirits. I expect him over on leave in the course of the autumn, when I shall take the liberty of introducing him to my friends at Rosemount.'

'I shall not fail to hold you to your promise.'

'And now to find the Captain.'

'The sun is rather oppressive. Had I not better send a servant?'

‘Thanks; no. I shall have no difficulty in finding him. *Au revoir.*’ And with a smile and a bow, the Baronet made his exit. On reaching the veranda, he paused to put up his umbrella, as a protection from the sun, and then went gingerly on his way.

‘It is not Charles, but Laura, whom he has come to see,’ mused Mrs Bowood as her eyes followed the Baronet. ‘There’s something in his manner which makes me feel almost sure that he will propose before the day is over; but now that Mr Boyd has put in an appearance, I am afraid Sir Frederick’s chance is a very poor one.—By-the-bye, why did Laura wear those jewels last night, which, as I have heard her say more than once, she has never worn since before her marriage? Well, well; I suppose that neither sentiment nor romance is quite dead, even when people can look back upon their thirtieth birthday.’

Mrs Bowood took up her pen again; but at that moment a servant entered the room. ‘Beg pardon, ma’am, but here’s a man come to mend the drawing-room lamp; and the fishmonger is waiting to see you; and there’s a young gent with spectacles and long hair come to tune the pianos.’

‘Dear, dear! I shall have to finish my letter after luncheon, I suppose.—I will come at once, Sparks. But I gave no instructions to any one about tuning the pianos.’

‘Perhaps the Captain may have sent the young man, ma’am.’

‘Perhaps so; but he doesn’t generally interfere in such matters.’

Sparks left the room, and Mrs Bowood put away her unfinished letter in the davenport. ‘What can have become of Mr Boyd?’ she said to herself. ‘I have seen nothing of him since breakfast. Probably, he and Laura are somewhere in the grounds together; if so, poor Sir Frederick will have to find another opportunity.’

As the Baronet, holding his umbrella over his head, paced slowly down one of the winding sunny walks that led from the house, he kept a careful watch on other walks to right and left of him. He was evidently looking out for some one in particular. ‘Why delay longer? Why not do it to-day and at once?’ he was asking himself as he walked along. ‘I have purposely kept away from her for five days, only to find that her image dwells more persistently in my thoughts than ever. It is true that she rejected me once;

but that was many years ago, when I was a poor man, and it is no reason why she should reject me a second time. She was a romantic school-girl then; she is a woman of the world now. Yes; the match is a desirable one in every way for both of us. She has money, and I have position. As the wife of Sir Frederick Pinkerton, she would be a very different personage from the widow of a City drysalter; and then her income added to mine would make a very comfortable thing.' The Baronet would seem to have been unaware of that particular clause in the late Sir Thomas's will by which his widow would be deprived of nearly the whole of her fortune in case she should marry again. It is possible that his ardour might have cooled down in some measure, had he been made aware of that important fact.

Presently he saw the object of his thoughts turn a corner of the path a little distance away. Her eyes were bent on the ground, and she did not see him. He stood still for a moment or two, watching her with a critical air. He flattered himself that he had a fastidious taste in most things that a gentleman should be fastidious about, and in women most of all. 'She will do—she will do!' he muttered to himself with an air of complacency. 'She is really charming. She shall be Lady Pinkerton before she is three months older.'

Lady Dimsdale happened to look up at this moment. She could not repress a little start at the sight of Sir Frederick.

The Baronet pulled up his collar the eighth of an inch, squared his shoulders, and went slowly forward.

Laura Dimsdale was a tall, graceful-looking woman. She was fair, with a lovely clear complexion, which, especially when she became at all animated, had not yet lost all the tints of girlhood. She had large hazel eyes, instinct with sweetness and candour, delicately arched eyebrows, and a mass of brown silky hair. If the usual expression of her face when alone, or when not engaged in conversation, was not exactly one of melancholy, it was at least that of a woman who has lived and suffered, and to whom the world has taught more than one bitter lesson. And yet in the old days at the vicarage, which now seemed so far away, there had been no merrier-hearted girl than Laura Langton; and even now, after all these years, the boundary that divided her tears from her smiles was a very narrow one. She was gifted with a keen sense of humour, and it did not take much to cause her



eyes to fill with laughter and her mobile lips to curve into a merry mocking smile.

Sir Frederick lifted his hat, and twisted his mouth into a smile that was a capital advertisement for his dentist. 'This is indeed an agreeable surprise, Lady Dimsdale. I came in search of Captain Bowood, and I find—you!'

'How cleverly you hide your disappointment, Sir Frederick!' She gave him her fingers for a moment as she spoke. 'As I have not seen the Captain since breakfast, I cannot tell you where to look for him. But you have been quite a truant during the last few days. We have all missed you.' There was a mischievous twinkle in her eyes as she said these words.

'Hum, hum. You flatter me, Lady Dimsdale. Business of importance took me to town for a few days.' He had turned with her, and was now pacing slowly by her side. 'Do you know, Lady Dimsdale,' he went on presently, 'that I never see a garden nowadays which seems half so charming to me as that dear, delightful wilderness of old-fashioned flowers behind your father's vicarage?'

'It was certainly a wilderness, and very old-fashioned into the bargain; but the flowers that grew there were very sweet.'

'I spent many happy hours among its winding walks.'

'And a few uncomfortable ones, I'm afraid. Have you forgotten that afternoon when, as you sat eating strawberries and cream in the summer-house, a caterpillar crawled down your neck? You made such extraordinary faces, that for a minute or two I felt quite frightened.'

'Hum. I had certainly forgotten the caterpillar,' answered the Baronet, not without a shade of annoyance.

'And then I used to fancy that you were never quite easy in your mind as we sat together in the garden. There were certainly a great many frogs, and I think you never liked frogs.'

'Not unless they were fricasséed. Trifling annoyances there might be, Lady Dimsdale; but when the presiding divinity was so fair'——

'The presiding divinity, Sir Frederick? A painted divinity! We gave her a fresh coat of paint every spring. Poor old Aphrodite with her shell—she used to stand in the middle of the fishpond. But you forget, Sir Frederick,

that she had lost her nose, and even a divinity hardly looks so charming without a nose as with one.'

Sir Frederick gave a sniff, and replied in his loftiest manner: 'When I made use of the term "presiding divinity," I need hardly say that I was referring to yourself, Lady Dimsdale.'

'I really beg your pardon, Sir Frederick, but no one ever called me a divinity before. Do you know I rather like it.' She led the way, as if unconsciously, to a wide-spreading yew, round the bole of which a low seat had been fixed. Here, in the grateful amplitude of shade, she sat down, and the Baronet seated himself a little distance away. It may be that she had some suspicion with regard to Sir Frederick's errand this morning, and had made up her mind to get it over and have done with it at once and for ever.

'Now for the plunge!' said the Baronet to himself as he sat down. The plumage of his self-conceit had been somewhat ruffled both by her words and manner; but whatever temporary annoyance he might feel, it would never do to betray it at such an all-important crisis.

'You are still the same Laura Langton that you were during those sunny days at the vicarage,' he began in what he considered his most insinuating manner. 'The same charm, the same power of fascination exist still. A happy time—at least for one of those two. But the ending was not a happy one—no, anything rather than that.'

'For which of the two people concerned was the ending not a happy one, Sir Frederick?'

Her coldly contemptuous tone touched him to the quick. A deep flush mounted to his face; for a moment or two he could not trust himself to answer her. 'I thank you, Lady Dimsdale,' he said at last. 'The reproof implied by your words is a just one. To her, no doubt, the end was seen from the beginning—a dramatic effect to be worked up to from the opening of the comedy. To him it came as a thunder-clap, as a stab from a hand that a moment before had been pressed to his lips. Day after day he had been led on by eyes that seemed ever to brighten at his coming; by smiles that seemed ever to be those of welcome; by low-voiced replies; by a hundred pleasant lures, till at length the moment came when his silence found itself a tongue. A few burning words, and everything was told. The answer?—A

mocking laugh, a scornful dismissal. His paradise had been the paradise of a fool. He had helped a pretty girl to pass away a few weeks in a dull country-house—and that was all!’ Sir Frederick spoke in low, almost impassioned accents. Any third person who might have chanced to overhear him would have been justified in assuming that he had been cruelly jilted.

But not a muscle of Lady Dimsdale’s face moved, and her answer came in tones as clear and incisive as those of a bell. ‘Were he here now of whom you speak, I would say to him: “You have an excellent memory for many things; is it possible that you can have forgotten Marietta Gray?”’

Sir Frederick started as if he had been stung. His face blanched suddenly. ‘Marietta Gray!’ he stammered out. ‘What do you, Lady Dimsdale, know of her?’

‘She was only a fisherman’s daughter, it is true,’ continued Lady Dimsdale in her clear cold accents. ‘A pretty toy for a fine gentleman to amuse himself with, and then to cast aside. I knew something of her, and I heard her story. When, a little later, one of the strange chances of life brought within my influence the man who had first won the affections of that poor girl and then basely deserted her, I resolved as far as lay in my power to avenge the cruel wrong. You have just told me, Sir Frederick, how well I succeeded in my object. I am happy to think, that the lesson has lingered so long in your memory.’

Sir Frederick rose and took one or two turns under the shade of the branching yew. Not for years had the still waters of his life been so deeply stirred. He took out his delicately perfumed handkerchief and wiped his forehead with it. His hands trembled a little—a thing that had rarely happened to him before. But through all his agitation and surprise, he felt that he had learned to care more for Laura Dimsdale during the last few minutes than he had ever cared for her before. If it were possible for him ever to really love a woman, here was that one woman. Even after all that had passed between them, he would ask her to become his wife. She was a generous, large-hearted creature, he felt sure; and now that she had stabbed him so cruelly, she would be the first to stoop and bind up his wounds. ‘It’s the way of her sex,’ he said to himself. Another reflection did not fail to impress itself upon him: Not to every one is given the chance of marrying a

Baronet with six thousand a year. Women can forgive much under such circumstances.

Lady Dimsdale rose. 'I must leave you now, Sir Frederick,' she said.

'One moment, if you please—just one moment,' he urged.

She hesitated a little, and then sat down again. He spoke, standing in front of her. 'The words you said to me just now, Lady Dimsdale, were very severe, but not more severe, perhaps, than the case warranted. *I can only cry mea culpa*, and throw myself on your mercy. I have not a word to urge in self-defence. But the past is the past; however much we may regret it, we cannot alter or amend it. The passion I felt for Laura Langton was sincere. There is proof of it in the fact that it exists undiminished to the present day. The flame is still alight—the ashes still glow with the fire that was first kindled fifteen years ago. Lady Dimsdale, here and to-day, I repeat the offer I made you once before—here and to-day I ask you once more to become my wife.' His manner was dignified, his words impressive.

The answer came without a moment's hesitation: 'Lady Dimsdale is infinitely obliged to Sir Frederick Pinkerton. She will not answer him to-day after the fashion she answered him years ago. She will simply say to him as editors say of rejected contributions, "Declined with thanks."'

Sir Frederick changed colour. He had not expected so decided a rebuff. He bowed gravely. 'May I be permitted to hope that your decision is not irrevocable—that it is open to reconsideration?'

'Being a woman, I change my mind about many things; but I shall never change it about this.'

At this moment a childish voice was heard calling: 'Aunty Laura—Aunty Laura, where are you? How tiresome of you to run away!'

Lady Dimsdale rose. 'One of my tyrants is calling me, and I must obey. You will excuse me, Sir Frederick, I am sure.'

Again came the voice: 'Aunty Laura, where are you?'

Lady Dimsdale drew a child's trumpet from her pocket and blew a few notes on it. A moment later, Sir Frederick found himself alone.

‘Hum, hum. Rejected—and for the second time,’ he muttered to himself. He was excessively chagrined. After the fashion of other men, having failed to obtain the object of his desires, he appraised it at a higher value than he had ever done before. ‘There must be another man in the case. She would never have refused Sir Frederick Pinkerton and six thousand a year, unless there were another man in the case. Who can he be?’

He strolled slowly in the direction of the house. He would have a word with Captain Bowood, and then he would take his leave. He entered through the open French-windows, but the room was empty. A moment later the door was opened noisily, and Miss Elsie Brandon burst into the room.

She was a tall slim girl, with very bright eyes, and features that were instinct with vivacity. She gave the promise of considerable beauty in time to come. Her hair, cut nearly as short as a boy’s, was a mass of tiny yellow curls. She wore a pinafore, and a frock that scarcely reached to her ankles—her aunt, Miss Hoskyns, had worn a pinafore and a short frock at her age; consequently, they were the proper things for young ladies to wear nowadays.

‘Oh, I beg your pardon, Sir Frederick, but I thought that perhaps Charley might be here.’

‘Good-morning, Miss Brandon,’ said Sir Frederick as he held out his hand.—‘And pray, who is Charley?’

‘Charley Summers, of course—Captain Bowood’s nephew.’

‘But I was under the impression that Captain Bowood had discarded his nephew?’

‘So he has. Cut off his allowance, and forbade him the house eight months ago.’

‘And yet you expect to see him here to-day?’ The Baronet was always interested in the affairs of his neighbours, especially when those neighbours happened to be people of property.

‘I don’t mind telling you, but I had a note from Charley this morning—on the sly, you know.’

‘Pardon me, but young ladies in society don’t generally say “on the sly.”’

‘Charley says it, and he was educated at Harrow. Anyhow, I had a note from him, in which he said that he should certainly contrive to see me to-day. It’s a great risk for him to run, of course; but that won’t deter him in the least.’

‘You appear to be greatly interested in the young gentleman.’

‘Don’t call him a young gentleman, please—it sounds so awfully formal. Didn’t I tell you that we are in love? No; I don’t think I did. Well, we are. It’s a secret at present, and there are all sorts of dreadful obstacles in the way. But we have made up our minds to get married by-and-by, or else we shall commit suicide and die together.’ As Miss Brandon spoke thus, she flung into the air the Latin grammar she had been carrying and caught it deftly as it fell.

‘That would indeed be a terrible fate,’ said the Baronet with a smile.

‘By Jove, though, Sir Frederick, but we are serious!’

‘Young ladies in society don’t generally say “by Jove.”’

‘Charley does, and he was educated at Harrow.’ From a pocket in her dress she drew a box of bon-bons, opened it and popped one between her teeth. Then she proffered the box to Sir Frederick. ‘Have one?’ she said with all the nonchalance imaginable.—The Baronet smiled, and shook his head.—‘You need not notice my fingers, please,’ continued Miss Brandon. ‘I’ve inked them. Somehow, I always do ink them when I’ve an extra hard lesson to learn.—But I say, Sir Frederick, isn’t it a jolly shame that a great girl like me should still be learning lessons? I’m seventeen years two months and four days old.’

‘Young ladies’——

‘I know what you are going to say. I learned the word from Charley, so it must be right. Well, it *is* a shame. I’ve a great mind to run away. I’ve five pounds saved up.’

‘Perhaps Charley, as you call him, might not like you to do that.’

‘No; I suppose not; and I must study him, poor boy. It’s an awful responsibility—sometimes my brain reels under it.’ Again the Latin grammar was flung high into the air and caught as it fell.

‘Is that the way you always learn your lessons, Miss Brandon?’

‘Not always. But, I say—I *do* hate Latin. I shall never learn it; and if I were to learn it, it would never be of any use to me.’

‘Young ladies in society don’t generally bite the corners of their pinafores.’

‘Charley does, and—— No; that’s nonsense. Young ladies in society don’t wear pinafores, so of course they have none to bite.’

At this moment, Captain Bowood entered the room, followed by a foreign-looking young man, who was dressed in a shabby frock-coat buttoned close up to the throat, and a pair of shoes very much down at heel. In one hand he carried a hat that was considerably the worse for wear. His long hair, parted down the middle, fell over his coat collar, and he wore blue spectacles.

‘There you are, young man,’ said the Captain as he pointed to the piano. ‘And the sooner you are done and off the premises, the better.’

‘Very good, sare. Much oblige,’ answered the stranger.

At the sound of his voice, Miss Brandon started and gazed earnestly at the young man in the blue spectacles.

‘Good gracious! Why, it must *be*—it *is* Charley!’ she muttered under her breath. ‘My poor dear boy! But what a fright he has made of himself!’

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# A KING OF ACRES.

## III.—A RINGFENCE: CONCLUSION.

THERE were great elms in the Out-park, whose limbs or boughs, as large as the trunk itself, came down almost to the ground. They touched the tops of the white wild parsley; and when sheep were lying beneath, the jackdaws stepped from the sheep's back to the bough and returned again. The jackdaws had their nests in the hollow places of these elms; for the elm as it ages becomes full of cavities. These great trees often divided into two main boughs, rising side by side, and afar off visible as two dark streaks among the green. For many years no cattle had been permitted in the park, and the boughs of the trees had grown in a drooping form, as they naturally do unless eaten, or broken by animals pushing against them. But since the times of agricultural pressure, a large part of the domain had been fenced off, and was now partly grazed and partly mown, being called the Out-park. There were copses at the farther side, where in spring the May flowered, the purple orchis was drawn up high by the trees and bushes—twice as high as its fellows in the mead, where a stray spindle-tree grew; and from these copses the cuckoos flew round the park.

But the thinnest hedge about the wheat-fields was as interesting as the park or the covers; and this is the remarkable feature of English scenery, that its perfection, its beauty, and its interest are not confined to any masterpiece here and there, walled in or inclosed, or at least difficult of access and isolated, but it extends to the smallest portion of the country. Wheat-field hedges are the thinnest of hedges, kept so that the birds may find no shelter, and that the numerous caterpillars may not breed in them more than can be helped. Such a hedge is so low it can be leaped over, and so narrow that it is a mere screen of twisted hawthorn branches which can be seen through, like screens of twisted stone in ancient chapels. But the sparrows come to it, and the finches, the mice, and weasels, and now and then a crow, who searches along, and goes in and out and quests like a spaniel. It is so tough this twisted screen of branches that a charge of shot would be stopped by it; if a pellet or two slid through an interstice, the majority would be held as if by a



shield of wicker-work. Old Bartholomew, the farmer, sent his men once or twice along with reaping-hooks to clear away the weeds that grew up here under such slight shelter; but other farmers were not so careful. Then convolvulus grew over the thin screen, a corncockle stood up taller than the hedge itself; in time of harvest, yellow St John's wort flowered beside it, and later on, bunches of yellow-weed.

A lark rose on the other side, and so caused the glance to be lifted and to look farther, and away yonder was a farmhouse at the foot of a hill. Pale yellow stubble covered the hill, rising like a background to the red-tile roof, and to the elms beside the house, among whose branches there were pale yellow spots. Round wheat-ricks stood in a double row on the left hand; count them, and you counted the coin of the land—bank-notes in straw—and on the right and in front were green meads, and horses feeding, horses who had done good work in plough-time and harvest-time, and would soon be at plough again. There were green meads, because some green meads are a necessity of an English farmhouse, and there are few without them, even when in the midst of corn. Meadows in which the horses feed, a pony for the children and for the pony-cart, turkeys, two or three cows; all the large and small creatures that live about the place. When the land was torn up and ploughed for corn of old time, these green inclosures were left to stay on, till now it seems as if pressure of low prices for wheat would cause the cornland to again become pasture. Of old time, golden wheat conquered and held possession, and now the grass threatens to oust the conqueror.

Had any one studied either of these three, the great elms in the Out-park, or the thin twisted screen of hedge, or the red-tile roof, and the yellow stubble behind it on the hill, he might have found material for a picture in each. There was, in truth, in each far more than any one could put into a picture, or than any one could put into a book; for the painter can but give one aspect of one day, and the writer a mere catalogue of things; but nature refreshes the reality every day with different tints, and as it were new ideas, so that, although it is always there, it is never twice the same. Over that stubble on the hill there were other hills, and among these a coombe or valley, in which stood just such another farmhouse, but so differently placed, with few trees, and those low, somewhat bare in its immediate surroundings, but above, on each side, close at hand, sloping ramparts of green turf rising high, till the larks that sang above seemed to sing in

another land, like that found by Jack when he clomb the beanstalk. Along this coombe was a cover of gorse, and in spring there was a mile of golden bloom, richer than gold in colour, leading like a broad highway of gold down to the house. From those ramparts in high summer—which is when the corn is ripe and the reapers in it—there could be seen a slope divided into squares of varied grain. This on the left of the fertile undulation was a maize colour, which, when the sunlight touched it, seemed to have a fleeting hue of purple somewhere within. There is no purple in ripe wheat visible to direct and considering vision; look for it specially, and it will not be seen. Purple forms no part of any separate wheatear or straw; brown and yellow in the ear, yellow in the upper part of the straw, and still green towards the earth. But when the distant beams of sunlight travelling over the hill swept through the rich ripe grain, for a moment there was a sense of purple on the retina. Beyond this square was a pale gold piece, and then one where the reapers had worked hard, and the shocks stood in diagonal rows; this was a bronze, or brown and bronze, and beside it was a green of clover.

Farther on, the different green of the hill turf, and white sheep, feeding in an extended crescent, the bow of the crescent gradually descending the sward. The hills of themselves beautiful, and possessing views which are their property and belong to them; a twofold value. The woods on the lower slopes full of tall brake fern, and holding in their shadowy depths the spirit of old time. In the woods it is still the past, and the noisy mechanic present of this manufacturing century has no place. Enter in among the round-boled beeches which the squirrels rush up, twining round like ivy in ascent, where they nibble the beech-nuts forty feet aloft, and let the husks drop to your feet, where the wood-pigeon sits and does not move, safe in the height and thickness of the spray. There are jew-berries or dew-berries on a bramble-bush, which grows where the sunlight and rain fall direct to the ground, unchecked by boughs. They are full of the juice of autumn, black, rich, vine-like, taken fresh from the prickly bough. Low down in the hollow is a marshy spot, sedge-grown, and in the sedge lie yellow leaves of willow already fallen. Here in the later months will come a woodcock or two, with feathers so brown and leaf-like of hue, and markings, that the plumage might have been printed in colours from brown leaves of beech. No springes are set for the woodcocks now, but the markings are the same on the feathers as centuries since; the brown beech-leaves lie in the dry hollows the year through just as they did then; the large dew-berries are as

rich; and the nuts as sweet. It is the past in the wood, and Time here never grows any older. Could you bring back the red stag—as you may easily in fancy—and place him among the tall brake, and under the beeches, he should not know that a day had gone by since the stern Roundheads shot down the last of his race hereabouts in Charles I.'s days. For the leaves are turning as they turned then to the altered colour of the sun's rays as he declines in his noonday arch, lower and lower every day; his rays are somewhat yellower than in dry hot June; a little of the tint of the ripe wheat floats in the sunshine. To this the woods turn. First, the nut-tree leaves drop, and the green brake is quickly yellow; the slender birch becomes lemon on its upper branches; the beech reddens; by-and-by the first ripe acorn falls, and there's as much cawing of the rooks in the oaks at acorn-time as at their nests in the elms in March.

All these things happened in the old old time before the red stags were shot down; the leaves changed as the sunbeams became less brilliantly white, the woodcocks arrived, the mice had the last of the acorns which had fallen, and which the rooks and jays and squirrels had spared for them after feasting to the full of their greediness. This ancient oak, whose thick bark, like cast-iron for ruggedness at the base, has grown on steadily ever since the last deer bounded beneath it, utterly heedless of the noisy rattle of machinery in the northern cities, unmoved by any shriek of engine, or hum, or flapping of loose belting, or any volume of smoke drifting into the air—I wish that the men now serving the great polished wheels, and works in iron and steel and brass, could somehow be spared an hour to sit under this ancient oak in Thardover South Wood, and come to know from actual touch of its rugged bark that the past is living now, that Time is no older, that nature still exists as full as ever, and to see that all the factories of the world have made no difference, and therefore not to pin their faith to any theory born and sprung up among the crush and pale-faced life of modern time; but to look for themselves at the rugged oak-bark, and up to the sky above the highest branches, and to take an acorn and consider its story and possibilities, and to watch the sly squirrel coming down, as they sit quietly, to play almost at their feet. That they might gather to themselves some of the leaves—mental and spiritual leaves—of the ancient forest, feeling nearer to the truth and soul, as it were, that lives on in it. They would feel as if they had got back to their original existence, and had become themselves, as they ought to be, could they live such life, untouched by artificial care.

Then, how hurt they would be if any proposed to cut down that oak; if any proposed the felling of the forest; and the death of its meaning. It would be like a blow aimed at themselves. No picture that could be bought at a thousand guineas could come near that ancient oak; but you can carry away the memory of it, the picture and thought in your mind for nothing. If the oak were cut down, it would be like thrusting a stick through some valuable painting on your walls at home.

The common below the South Wood, even James Thardover with all his desire for improvement could not do much good with; the soil, and the impossibility of getting a fall for draining, all checked effort there. A wild, rugged waste, you say, at first, glancing at the rushes, and the gaunt signpost standing up among them, the anthills, and thistles. Thistles have colour in their bloom, and the prickly leaves are finely cut; rushes—green rushes—are notes of the season, and with their slender tips point to the days in the book of the year; they are brown now at the tip, and some bent downwards in an angle. The brown will descend the stalk till the snipes come with gray-grass colours in their wings. But all the beatings of the rain will not cast the rushes utterly down; they will send up fresh green successors for the spring, for the cuckoo to float along over on his way to the signpost, where he will perch a few minutes, and call in the midst of the wilderness. There, too, the lapwings leave their eggs on the ground among the rushes, and rise, and complainingly call. The warm showers of June call up the iris in the corner where the streamlet widens, and under the willows appear large yellow flowers above the flags. Pink and white blossom of the rest-harrow comes on bushy plants where the common is dry, and there is heath, and heather, and fern. The waste has its treasures too—as the song-thrush has his in the hawthorn bush—its treasures of flowers, as the wood its beauties of tree and leaf, and the hills their wheat.

The ringfence goes farther than this; it incloses the living creatures, yet without confining them. The wing of the wood-pigeon as the bird perches, forms a defined curve against its body. The forward edge of the wing—its thickest part—as it is pressed to its side, draws a line sweeping round; a painter's line. How many wood-pigeons are there in the South Wood alone, besides the copses and the fir-plantations? How many turtle-doves in spring in the hedges and outlying thickets, in summer among the shocks of corn? And all these are his—the Squire's—not in the sense of possession, for no

true wild creature was ever any one's yet; it would die first; but still within his ringfence, and their destinies affected by his will, since he can cut down their favourite ash and hawthorn, or thin them with shot. Neither of which he does. The robin, methinks, sings sweetest of autumn-tide in the deep woods, when no other birds speak or trill, unexpectedly giving forth his plaintive note, complaining that the summer is going, and the time of love, and the sweet cares of the nest; telling you that the berries are brown, the dew-berries over-ripe, and dropping of over-ripeness like dew as the morning wind shakes the branch; that the wheat is going to the stack, and that the rusty plough will soon be bright once more by the attrition of the earth.

Many of them sing thus in the South Wood, yet scarce any two within sound of each other, for the robin is jealous, and likes to have you all to himself as he tells his tale. Song-thrushes—what ranks of them in April; larks, what hundreds and hundreds of them on the hills above the green wheat; finches of varied species; blackbirds; nightingales; crakes in the meadows; partridges; a whole page might be filled merely with their names.

These, too, are in the ringfence with the hills and woods, the yellow iris of the common, and the red-roofed farmhouses. Besides which, there are beings infinitely higher, something of whom has been said in a previous chapter—namely, men and women in village and hamlet, and more precious still, those little children with hobnail boots and clean jackets and pinafores, who go a-blackberrying on their way to school. All these are in the ringfence. Upon their physical destinies, the Squire can exercise a powerful influence, and has done so, as the school itself testifies.

Now, is not a large estate a living picture? Or rather, is it not formed of a hundred living pictures? So beautiful it looks, its hills, its ripe wheat, its red-roofed farmhouses, and acres upon acres of oaks; so beautiful, it must be valuable; most valuable; it is visible, tangible wealth. It is difficult to disabuse any one's mind of that idea; yet, as we have seen, with all the skill, science, and expenditure Thardover could bring to bear upon it, all his personal effort was in vain. It was a possession, not a profit. Had not James Thardover's ancestors invested their wealth in building streets of villas in the outskirts of a great city, he could not have done one-fifth what he had. Men who had made their fortunes in factories—the noisy factories of the present century—paid him high rents for these residences; and thus it was

that the labour and time of the many-handed operatives in mill, factory, and workshop really went to aid in maintaining these living pictures. Without that outside income the Squire could not have reduced the rents of his tenants so that they could push through the depression; without that outside income he could not have drained the lands; put up those good buildings; assisted the school, and in a hundred ways helped the people. Those who watched the polished machinery under the revolving shaft, and tended the loom, really helped to keep the beauties of South Wood, the grain-grown hills, the flower-strewn meadows. These were so beautiful, it seemed as if they must represent money—riches; but they did not. They had a value much higher than that. As the spring rises in the valley at the foot of the hills and slowly increases till it forms a river, to which ships resort, so these fields and woods, meads and brooks, were the source from which the city was derived. If the operative in the factory, or tending the loom, had traced his descent, he would have found that his grandfather, or some scarcely more remote ancestor, was a man of the land. He followed the plough, or tended the cattle, and his children went forth to earn higher wages in the town. For the hamlet and the outlying cottage are the springs whence the sinew and muscle of populous cities are derived. The land is the fountainhead from which the spring of life flows, widening into a river. The river at its broad mouth disdains the spring; the city in its immensity disdains the hamlet and the ploughman. Yet if the spring ceased, the ships could not frequent the river; if the hamlet and the ploughman were wiped out by degrees, the city must run dry of life. Therefore the South Wood and the park, the hamlet and the fields, had a value no one can tell how many times above the actual money rental, and the money earned by the operatives in factory and workshop could not have been better expended than in supporting it.

But it had another value still—which they too helped to sustain—the value of beauty. Parliament has several times intervened to save the Lake district from the desecrating intrusion of useless railways. So too, the beauty of these woods, and grain-grown hills, of the very common, is worth preservation at the hands and votes of the operatives in factory and mill. If a man loves the brick walls of his narrow dwelling in a close-built city, and the flowers which he has trained with care in the window; how much more would he love the hundred living pictures like those round about Thardover House. After any artificer had once seen such an oak and rested under it, if

any threatened to cut it down, he would feel as if a blow had been delivered at his heart. His efforts, therefore, should be not to destroy these pictures but to preserve them. All the help that they can give is needed to assist a King of Acres in his struggle, and the struggle of the farmers and labourers—equally involved—against the adverse influences which press so heavily on English agriculture.

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## **MRS SHAW: THE LATE PRINCE IMPERIAL'S NURSE.**

VISITORS to Paris during the meretricious glories of the Second Empire may possibly recall to mind that amidst the glare and glitter of that feverish epoch, one wholesome and interesting sight was constantly to be seen in the Tuileries gardens when the court was in residence at the palace—a bright-looking child playing with his English nurse; and the spectators were particularly attracted by the devoted attachment that appeared to exist between them. The child was the Prince Imperial of France; and his attendant, the pleasant-looking Yorkshire woman, was known in Paris as Mrs Shaw. A curious history is connected with her entrance into the imperial household, the story of which the writer obtained from what she believes to be a well-authenticated source.

Mrs Shaw was a valued nurse in a family where she had lived for some time, when one morning she startled her mistress with the announcement that she had dreamt she was destined to have the charge of the future Prince Imperial of France, and must leave her place at once. Although the expected event was causing the greatest excitement in Paris, it seems unlikely that it should have created much interest in a quiet English establishment, and naturally enough, her inspiration was treated as an unreasonable and inconvenient delusion. But no persuasions or arguments could induce her to remain, or remove what appeared to be an aberration of mind. Off she set, back to her Yorkshire village, and sought an interview with the clergyman of the parish, who appears to have been one of those worthy souls to whom his parishioners could resort as to a father-confessor; and struck with her determination and energy, he promised, after some expostulation, to assist her to the best of his power, though holding out no hope of success. He happened to have a slight acquaintance with the eminent London physician who had been honoured by Her Imperial Majesty with instructions to select a certain number of nurses, from whom she herself would choose the one that seemed most fitting for the post. Although besieged with applications, he consented to place Mrs Shaw on his list of candidates, and to grant her



an interview, which resulted in his sending her with five others to Paris for the Empress's approval, who at once chose her; and her dream was fulfilled!

The strength of character that had carried her to this triumphant issue, by no means deserted her in this new position. Amusing anecdotes reached us from time to time of the way in which the sensible, homely Yorkshire woman carried all before her in the imperial nurseries; would have no foreign ways or interference from court dames or lady-superintendents, or allow her small charge to be harassed with tedious toilets and fatiguing ceremonials; and finally gained her point, after personally appealing to the Emperor, who was only too glad to have the child brought up in the healthy English fashion; and fully appreciating her fidelity, gave orders that she was to rule alone, without let or hindrance; and always treated her with the greatest kindness and consideration.

And is it not possible that the true and perfect knight the Prince in after-years became, may have been owing in some measure to this early training in English ways and English thoughts, which made us look upon him as the child of our adoption when in exile among us, and take a mournful pride in his heroic martyrdom?

At the end of seven years, rumours of another tug of war reached us from the nursery domain. Mrs Shaw was to retire with a pension, and the Prince transferred to tutors and governors, as befitted his exalted prospects. But she absolutely refused to go and break her heart and the child's too; and again gaining her point, was transformed into a sort of Madame la Gouvernante, and allowed to retain her apartments in the Tuileries; and a pleasant retreat they must have been for the poor Prince, when bored and wearied with lessons and precepts and all the miseries attendant upon high education, which seem to be inflicted in a more burdensome form upon royal pupils than on their subjects, perhaps because it is conducted on the solitary confinement fashion, without the competition and other natural excitements of a public school. The writer believes she afterwards married an officer in the Imperial Guard, so that her fortunes were still more closely bound up with those whom she loved and served so well; and we often wondered what became of her in the dark days of Sedan and the downfall of their race, and whether she lived to join them in exile, and share the last crushing sorrow with the beloved and bereaved Empress.



## A YEAR'S WOOING.

'Twas autumn when first they stood on the bridge;  
Ripe pears on the pear-tree, ripe corn on the ridge;  
The swallows flew swiftly far up in the blue,  
And speeding still southward, were lost to the view.  
Said he: 'Can you love me, as I can love you?'  
She said, quite demurely: 'Already I do!'

'Twas winter when next they met on the bridge;  
The pear-trees were brown, and white was the ridge;  
The swallows were feathering their nests in Algiers.  
She looked in his face, and she burst into tears!  
His nose it was pinched, and his lips they were blue.  
Said she: 'I can't love you!' Said he: 'Nor I you!'

'Twas spring-time when next they stood on the bridge,  
And white was the pear-tree, and green was the ridge;  
The swallows had thoughts of a speedy return;  
And the midges were dancing a-down the brown burn.  
He said: 'Pretty maiden, let by-gones go by—  
Can you love me again?' She said: 'I can try.'

'Twas summer when next they stood on the bridge;  
There were pears on the pear-tree, tall corn on the ridge;  
The swallows wheeled round them, far up in the blue,  
Then swooped down and snapped up a midgelet or two.  
Said he: 'Lest some trifle should come in the way,  
And part us again, will you mention the day?'  
She stood, looking down on the fast-flowing rill,  
Then answered, demurely: 'As soon as you will!'

H. L. R.

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### FOOTNOTES:

[1] It may be observed with regard to the Irish peerage, that the Crown can create a new peer of Ireland only as often as three peerages existing in 1801 become extinct. But in order to keep the peerage of Ireland up to the number of one hundred, if one of that number becomes extinct, the Crown may then create another. Of course we refer to the Irish peerage pure and simple, and do not include peers who are peers of Ireland as well as of the United Kingdom. As a peerage merely of Ireland or of Scotland confers an empty title and nothing more, such a dignity has ceased to be created.

[2] Peers as noblemen have likewise been styled by the Latin and French appellations of Magnates, Les Grandes, Proceres, Domini, Seigneurs, and Pares Regni.

[3] The distinction between felony and misdemeanour at common law was, that a conviction for the former caused a forfeiture of the offender's goods, &c., to the Crown. The latter did not have this effect. The Act 33 and 34 Vict. c. 23 abolishes forfeiture for treason and felony; but the distinction in other respects between felonies and misdemeanours still exists.

[4] A jury of peers would be technically described as 'the lords-triers.'

[5] One peer, Lord Kingsale, of the Irish peerage, is entitled to be covered even in the sovereign's presence. This singular privilege is of very ancient date. The peerage itself was created in 1181, and the present holder of it is the thirty-first baron.

[6] We say 'many,' because all dukes, &c., do not hold the successive titles. Thus, the eldest son of the Duke of Richmond and Gordon bears the courtesy title of Earl of March, and by such style sits in the House of Commons as member of parliament for West Sussex.

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